

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESUS PINEDA-RAMIREZ,

Petitioner

VS.

REBECCA ROSEN,

Respondent

) Case Number: FDV-24-817982

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ENFORCEMENT OF REPAYMENT TERMS FILED ON MARCH 10,
2025

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jesus Pineda-Ramirez and Respondent Rebecca Rosen.
- 2) On 9/9/25, Respondent filed a Request for Order seeking enforcement of a Stipulation and Order
file dated 3/10/25. Respondent requests the Court authorize alternative service of her 9/9/25
Request for Order under Code of Civil Procedure section 413.30 because she does not have
Respondent's current address and there is a Domestic Violence Restraining Order (DVRO) in
place.
- 3) At the prior 11/25/25 hearing, the Court continued the matter to 2/17/26 for lack of service.
- 4) There is still no proof of service on file evidencing Respondent's 9/9/25 Request for Order was
served on Petitioner.
- 5) Petitioner did not file a Responsive Declaration.
- 6) At the prior 2/17/26 hearing, the Court ordered:

- 1 a. The Court finds that Respondent's 9/9/25 Request for Order was not served at least 16
2 Court days prior to the hearing date as required by Code of Civil Procedure section
3 1005(b).
- 4 b. The Court further finds that is has insufficient information to grant alternative service at
5 this time as Respondent did not provide the Court with information regarding diligent
6 efforts made to locate and serve Petitioner. Alternative service is appropriate in
7 circumstances where the opposing party cannot, with reasonable diligence, be served in
8 another authorized manner, and exhaustive attempts to locate and serve the opposing
9 party were demonstrated.
- 10 c. As such, this matter is **continued to 4/28/26 at 9 AM in Dept. 403** for lack of service.
- 11 d. Respondent is encouraged to seek assistance at from the ACCESS Center if she continues
12 to have trouble effectuating proper service. Information for contacting the ACCESS
13 Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 14 e. At least 16 Court days prior to the next hearing date, Respondent shall file and serve on
15 Petitioner the (a) 9/9/25 Request for Order, (b) 11/25/25 Continuance Order, (c)
16 Continuance Order contained herein, and (d) Tentative Ruling Instructions using a
17 service method authorized by the Code of Civil Procedure (i.e., a person over the age of
18 18 shall mail to Petitioner the (a) Request for Order, (b) Continuance Orders, and (c)
19 Tentative Ruling Instructions, and then Respondent shall file form FL-335 (Proof of
20 Service) with the Court confirming service was effectuated).
- 21 f. At least 9 Court days prior to the next hearing date, Petitioner may file a Responsive
22 Declaration.
- 23 g. At least 5 Court days prior to the next hearing date, Respondent may file and serve a
24 Reply Declaration.

25 7) Respondent did not file any additional pleadings; there is still no proof of service on file
26 evidencing Respondent's 9/9/25 Request for Order was served on Petitioner.

27 8) Petitioner did not file a Responsive Declaration.

28 **B. Findings and Order**

29

- 1) Given that there is still no proof of service on file evidencing Respondent's 9/9/25 Request for Order was served on Petitioner, The Court finds that Respondent's 9/9/25 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) The Court continues to have insufficient information to grant alternative service at this time as Respondent did not provide the Court with information regarding diligent efforts made to locate and serve Petitioner. Alternative service is appropriate in circumstances where the opposing party cannot, with reasonable diligence, be served in another authorized manner, and exhaustive attempts to locate and serve the opposing party were demonstrated.
- 3) Based on the foregoing, the Court finds good cause to VACATE the 4/28/26 hearing date. Respondent's 9/9/25 Request for Order is therefore DENIED without prejudice (i.e., Respondent may refile).
- 4) Respondent is encouraged to seek assistance at from the ACCESS Center if she chooses to refile and continues to have trouble effectuating proper service. Information for contacting the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 5) The Court will prepare the Findings and Order After Hearing.